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CONTROL
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REEL 73FR. 072

254422

DECLARATION OF COVENANTS, CONDITIONS
AND RESTRICTIONS APPLICABLE TO HARTSTENE POINTE
ADDITION NO. 1

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RECORDED 22-FILED
REEL 73- FR. 072-17
MASON COUNTY
SUPERIOR COURT

REQUEST OF
J. H. HARTSTENE
400-150-1000
Bellingham, WA
98204

THIS DECLARATION, made on the date hereinafter set forth,
by WEYERHAEUSER PROPERTIES, INC., hereinafter referred to as
"Declarant,"

W I T N E S S E T H :

WHEREAS, Declarant is the owner of that certain real
property on the north tip of Hartstene Island in Mason County,
Washington which has been specifically described and identified
as Lots 205 and 206 of the plat of Hartstene Pointe, as recorded
in Volume 8 of Plats, pages 80 through 85, Records of Mason
County, Washington, under Auditor's Fee No. 252193,

WHEREAS, Declarant has replatted and subdivided the
said Lots 205 and 206 pursuant to RCW 58.17 by means of a second
plat entitled "Hartstene Pointe, Addition No. 1," which is being
recorded in the Records of Mason County concurrently with this
Declaration, and

WHEREAS, Declarant intends to sell the Platted Residen-
tial Lots in said Addition,

NOW, THEREFORE, Declarant hereby declares that all of
said Platted Residential Lots shall be held, sold and conveyed
subject to the easements, restrictions, covenants, and conditions
hereinafter set forth. These easements, restrictions, covenants

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and conditions are intended to protect the value and desirability of the aforesaid real property. They shall run with the aforementioned Platted Residential Lots and shall be binding on all parties having or acquiring any right, title or interest in these Platted Residential Lots or any part thereof, as well as their heirs, successors and assigns. They shall inure to the benefit of each present or future owner of the aforementioned real property or any part thereof or interest therein.

ARTICLE I

DEFINITIONS

Section 1. "Association" means the Hartstene Pointe Maintenance Association, a Washington nonprofit corporation.

Section 2. "Declarant" means Weyerhaeuser Properties, Inc. the maker of this Declaration and the record owner of the real property.

Section 3. "Real property" means the entire land area of Hartstene Pointe, Addition No. 1, including the tidelands abutting on such land area to the extent that they are Declarant's property.

Section 4. "Plat" means the plat of Hartstene Pointe, Addition No. 1, which Declarant filed for recording with the Mason County Auditor concurrently with this Declaration, and which was recorded in Volume 8 of Plats on Pages 111 to 112 inclusive, under Mason County Auditor's Fee No. 254421.

Section 5. "Platted Residential Lots" means the rectangular single-family attached lots shown on the Plat and identified thereon by arabic numerals running from 1 to 40. For marketing purposes, and to distinguish them from platted residential lots in other subdivisions of Hartstene Pointe, Declarant may promote and refer to them as "Island House Lots." Prior to the conveyance of each of these Platted Residential Lots, Declarant will erect or cause to be erected a single-family attached (i.e., a duplex-type) residence on it so that each purchaser will become the owner of both the Platted Residential Lot and the residence on it. Declarant does not intend to sell vacant Platted Residential Lots.

Section 6. "Common Area" means all Real Property to be transferred to and to be held by the Association for the common use, enjoyment or benefit of the owners. The Common Area on the Real Property consists of the lots numbered 41 and 42 on the Plat. All permanent structures and fixtures upon the Common Area, including roads and utility systems, shall be deemed a part thereof.

Section 7. "Owner" means the owner or the contract purchaser in possession, of a Platted Residential Lot. Declarant shall be considered the Owner of all lots not yet sold, or reacquired, by it.

Section 8. "Hartstene Pointe, Addition No. 1" means the single-family attached residential community shown by the Plat. It will consist of 40 single-family attached (i.e., duplex-type) dwellings to be erected by Declarant in accordance with a single

plat-wide building scheme, the Platted Residential Lots on which they will be located, and the Common Area.

Section 9. "Hartstene Pointe" means the whole of the recreational-residential complex which Declarant intends to create and develop in the northern part of Hartstene Island in Mason County, Washington, and of which Hartstene Pointe Addition No. 1 is the second platted subdivision. It will consist of all lawfully platted subdivisions identified as "Hartstene Pointe" or additions thereto on the duly recorded plats thereof.

Section 10. "Membership" means the members of the Association.

ARTICLE II PROPERTY RIGHTS

Section 1. Owners' Easement of Enjoyment.

Each Owner shall have a nonexclusive right and easement of enjoyment in and to the Common Area which shall be appurtenant to and shall pass with the title to the Owner's lot. Such right and easement shall be subject only to the following:

A. The right of the Association to charge reasonable admission and other fees for the use of any recreational facilities and the services rendered by any utility system situated upon the Common Area;

B. The right of the Association to suspend the voting rights and the right to use the Common Area of an Owner for any period during which

- (i) any assessment against his lot remains unpaid, or
- (ii) any violation of these covenants or of the Association's published rules for which he is responsible remains unabated;

C. The right of the Association, acting through its Board of Directors, to dedicate and transfer any utility system on, or which may be a part of, the Common Area, to Mason County;

D. The right of the Association to dedicate and transfer all or any part of the remainder of the Common Area to any public agency, authority, or utility for such purposes, in such manner and subject to such conditions as may be consistent with the Association's Articles of Incorporation, its Bylaws, and the Washington Nonprofit Corporation Act; and

E. The nonexclusive right of all other members of the Association to use, enjoy and have the benefit of the Common Area upon the same terms.

Section 2. Delegation of Use.

An Owner may delegate, in accordance with such rules and regulations as the Association may promulgate, his right of enjoyment of the Common Area and common facilities to the members of his family, his tenants, and his contract purchasers in possession.

ARTICLE III

DECLARANT'S DUTY TO CONVEY AND
ASSOCIATION'S DUTY TO ACCEPT
COMMON AREA

Declarant shall convey to the Association, and the Association shall accept, all or any part of the Common Area as soon as the Association is able to operate and maintain the same in a manner appropriate to the needs and desires of the Owners, or as soon as the Association has an opportunity and wishes to dedicate the same to Mason County or some other suitable governmental body. This Article is not intended to authorize Declarant to delay the transfer of the Common Area indefinitely or otherwise unreasonably.

ARTICLE IV

THE ASSOCIATION AND MEMBERSHIP
AND VOTING RIGHTS THEREIN

Section 1. Every Owner of a Platted Residential Lot shall be a member of the Association. Membership shall be appurtenant to and may not be separated from ownership of one or more lots.

Section 2. To the extent that they touch and concern the land described by the Plat, the Articles of Incorporation and Bylaws of the Association shall be deemed covenants running with the land, and shall be as binding upon Owners as if verbatim recited herein.

Section 3. The voting rights of Association members shall be as specified in the Association's Bylaws.

ARTICLE V

ASSESSMENTS

Section 1. Creation of the Lien and Personal
Obligation of Assessments.

Each Owner other than Declarant, by accepting a deed to or land contract for a Platted Residential Lot (whether or not it shall be so expressed in such instrument), shall be deemed to covenant to pay to the Association

- (1) regular annual assessments,
- (2) building exterior maintenance assessments, and
- (3) special assessments for capital improvements,

such regular annual, building exterior maintenance and special assessments to be established and collected as hereinafter provided. The regular annual, building exterior maintenance and special assessments, together with interest, costs, and reasonable attorney's fees, shall be a charge on each Owner's Platted Residential Lot, and shall be a continuing lien upon the Platted Residential Lot against which each such assessment is made. Each such assessment, together with interest, costs, and reasonable attorney's fees, shall also be the personal obligation of the person who was the Owner of such Platted Residential Lot at the time when the assessment fell due.

Section 2. Purpose of Assessments.

(a) The regular annual assessments levied by the Association shall be used exclusively to administer these covenants, to

maintain and improve the Common Area, and generally to promote the recreation, health, safety, comfort, convenience and welfare of the Owners of Platted Residential Lots in Hartstene Pointe.

(b) The building exterior maintenance assessments levied by the Association shall be used exclusively to defray the costs of maintaining the exterior of the buildings on Platted Residential Lots as required by Article VIII, Section 3 of this Declaration.

(c) The special assessments levied by the Association shall be used exclusively for the capital improvements proposed in the notice of the membership meeting at which each such special assessment was approved.

Section 3. Maximum Regular Annual Assessments.

(a) The first year in and for which regular annual assessments shall be established and collected shall be the calendar year 1971. The regular annual assessment for such year shall not exceed \$96 per Platted Residential Lot. This amount does not include charges for utility services.

(b) Beginning January 1, 1972 the maximum annual assessment may be increased each year not more than 3% above the maximum assessment for the previous year without a vote of the membership.

(c) Beginning January 1, 1972, the maximum regular annual assessment may be increased above 3% by a vote of 2/3 of each class of members who are voting in person or by proxy, at a meeting duly called for this purpose.

(d) The Board of Directors may fix the regular annual assessment at an amount not in excess of the maximum.

Section 4. Special Assessments for Capital Improvements.

In addition to the regular annual assessments authorized above, the Association may levy, in any assessment year, a special assessment applicable to that year only for the purpose of defraying, in whole or in part, the cost of any construction, reconstruction, repair or replacement of a capital improvement upon the Common Area, including fixtures and personal property related thereto, provided that any such assessment shall have the assent of two-thirds of the votes of each class of members who are voting in person or by proxy at a meeting duly called for this purpose.

Section 5. Notice and Quorum for any Action Authorized Under Sections 3 and 4.

Written notice of any meeting called for the purpose of taking any action authorized under Section 3 or Section 4 of this Article V shall be sent to all members not less than 30 days nor more than 50 days in advance of the meeting. At the first such meeting called, the presence of members or of proxies entitled to cast 50% of all votes entitled to be cast by each class of members shall constitute a quorum. If the required quorum is not present, another meeting may be called subject to the same notice requirement, and the required quorum at such subsequent meeting shall be one-half of the required quorum at the preceding meeting. No such subsequent meeting shall be held more than 50 days following the preceding meeting.

Section 6. Uniform Rate of Assessment.

Regular annual, building exterior maintenance and special assessments must be fixed at a uniform rate for all Platted Residential Lots subject to assessment.

Section 7. Date of Commencement of Regular Annual Assessments; Due Dates.

The regular annual assessments provided for herein shall commence as to all lots subject thereto on the first day of 1971. The Board of Directors shall fix the amount of the regular annual assessment against each lot at least 30 days in advance of the beginning of each annual assessment period. Written notice of the regular annual assessment shall be sent to every Owner subject thereto. The due dates shall be established by the Board of Directors. Assessments may be collected in advance and in such a manner, at such times, and in such installments as the Board of Directors may require. The Association shall, upon demand, and for a reasonable charge, furnish a certificate signed by an officer of the Association setting forth whether the assessments on a specified Platted Residential Lot have been paid.

Section 8. Proration.

When an Owner purchases a Platted Residential Lot after January 1, 1971, his liability for the regular annual and special assessments which have been established for the year of purchase shall be prorated in accordance with the number of days remaining in that year on the date of purchase. Such prorated assessments shall be due and payable on the day of closing.

Section 9. Building Exterior Maintenance
Assessments.

(a) The first year in and for which building exterior maintenance assessments shall be established and collected shall be the first year in which either of the following occurs:

(i) Declarant completes the construction of a residence on a Platted Residential Lot previously sold by it, or

(ii) An Owner purchases a Platted Residential Lot with a residence previously constructed on it.

(b) An Owner's liability for building exterior maintenance assessments shall begin to accrue on the later of

(i) The date on which Declarant completes the construction of a residence on a Platted Residential Lot previously purchased by him, or

(ii) The date on which he purchases a Platted Residential Lot with a previously constructed residence on it.

Accordingly, an Owner's liability for the building exterior maintenance assessments which have been established for the year in which he first becomes liable for such assessments shall be prorated in accordance with the number of days remaining in that year on the later of the two dates just mentioned.

(c) The Association's Board of Directors shall fix the amount of the building exterior maintenance assessments for each calendar year so as to raise enough revenue to reimburse the

Association for all costs of providing the building exterior maintenance services required of it by Article VIII, Section 3 of this Declaration in that calendar year, provided, however, that the building exterior maintenance assessment for the first calendar year in which such assessments are levied shall not exceed \$72 per Platted Residential Lot.

(d) The Board of Directors shall fix the amount of the annual building exterior maintenance assessment for each subsequent calendar year at least 30 days prior to its first day. Written notice of it shall be sent to every Owner subject thereto. The due dates shall be established by the Board of Directors. Building exterior maintenance assessments may be collected in advance and in such a manner, at such times and in such installments as the Board of Directors may require. The Association shall, upon demand and for a reasonable charge, furnish a certificate signed by an officer of the Association setting forth whether the assessments on a specified Platted Residential Lot have been paid.

(e) The Board of Directors shall have authority, and it shall be its duty, to make such changes in the level of building exterior maintenance assessments as may be necessary to make the revenue raised thereby in any calendar year equal to the total costs of the building exterior maintenance services required of the Association by this Declaration in that calendar year. Neither the assent of the Owners nor that of the membership shall be required for any such changes.

Section 10. Effect of Nonpayment of Assessment;
Remedies of the Association.

Any assessment not paid within 30 days after the due date shall bear interest from the due date at the rate of 9% per annum. The Association may bring an action at law against the Owner personally obligated to pay the same, or foreclose the lien against the Platted Residential Lot subject thereto. No Owner subject to assessment may waive or otherwise escape liability for the assessments provided for herein by nonuse of the Common Area or abandonment of his lot. The Association may suspend a delinquent Owner's voting rights and his right to use, enjoy and have the benefit of the Common Area for such period as his delinquency continues.

Section 11. Subordination of Assessment Liens
to Declarant's Security Interest.

The lien of the assessments provided for herein shall be subordinate to any security interest of Declarant in any Platted Residential Lot which secures any Owner's obligation to pay Declarant the purchase price of such Platted Residential Lot.

*See Amendment dated June 15, 1971 for addition of
Section 12.*

ARTICLE VI

ARCHITECTURAL CONTROLS

No building, fence, wall or other structure shall be commenced, erected or maintained upon Platted Residential Lots or the Common Area or any part thereof, nor shall any exterior addition to, or change or alteration therein, be made until the plans and specifications showing the nature, kind, shape, height,

materials and location of the same shall have been submitted to and approved in writing as to harmony of external design and location in relation to surrounding structures and topography by the Board of Directors of the Association, or by an architectural control committee composed of three members appointed by the Board. In the event said Board, or the architectural control committee designated by it, fails to approve or disapprove such design and location within 60 days after said plans and specifications have been submitted to it, approval will not be required, and this Article will be deemed to have been fully complied with.

No landscaping work, including the removal of natural trees, shrubs, brush and other ground cover, shall be undertaken on any Platted Residential Lot until the plans and specifications showing the nature and other details of the proposed work shall have been submitted to and approved in writing by the Board of Directors of the Association or by the aforementioned architectural control committee appointed by the Board. In the event said Board, or its designated committee, fails to approve or disapprove of such proposed landscaping work within 60 days after said plans and specifications have been submitted to it, approval will not be required and this Article will be deemed to have been fully complied with.

ARTICLE VII

LAND USE RESTRICTIONS

Section 1. Platted Residential Lots shall be used for single-family residential purposes only.

Section 2. There shall be no water wells on Platted Residential Lots. Owners of such lots desiring a water supply must be connected to the central community water system to be installed by Declarant.

Section 3. No sewage or sanitary waste disposal facility of any kind other than the central community sewer system to be installed by Declarant shall be installed or used upon the Real Property. Owners of Platted Residential Lots requiring sewer or sanitary waste disposal service must obtain the same from the said central community sewer system.

Section 4. No signs shall be erected or maintained on any Platted Residential Lot except

(a) one sign of not more than 3 square feet identifying lot owners or occupants, and

(b) one sign of not more than 6 square feet, advertising a Platted Residential Lot for sale or rent.

Nothing herein shall preclude Declarant or its sales agents from erecting and maintaining such temporary signs and structures as may, in Declarant's judgment, promote the development and sale of Platted Residential Lots or other interests in the Real Property.

Section 5. No trees, hedges, shrubbery, or other plants exceeding six feet in height shall be placed or planted on any Platted Residential Lot, nor shall any such planted tree, hedge, shrub or other plant be allowed to grow to a height in excess of six feet without the written approval of the Association's Board

of Directors or the architectural control committee designated by the Board of Directors.

Section 6. No Platted Residential Lot shall be used for the keeping, raising, or breeding of animals. However, common household pets such as dogs and cats may be kept on a Platted Residential Lot for noncommercial purposes if and so long as they do not become a nuisance.

Section 7. No trash, garbage, rubbish, refuse, or other solid waste of any kind, including particularly inoperable automobiles, appliances and furniture, shall be thrown, dumped, stored, disposed of, or otherwise placed on any part of the Real Property. Garbage and similar solid waste shall be kept in sanitary containers well suited for that purpose. These containers shall be stored in such places and such manner as the Association may by published rules prescribe. The Owner or occupant of each Platted Residential Lot shall be responsible for the disposal of solid waste at legally established solid waste disposal facilities outside the Real Property.

Section 8. No Platted Residential Lot shall ever be subdivided.

Section 9. The use of firearms or explosives is prohibited, except as required for construction work duly authorized by the Board of Directors or the architectural control committee.

Section 10. No Owner shall change or interfere with the natural drainage of the Real Property without the prior written

approval of the Board of Directors or the architectural control committee.

Section 11. The parking, storage or use of travel trailers, mobile homes, campers, boats or boat trailers on Platted Residential Lots is prohibited. They may, however, be parked or stored on such portions of the Common Area as the Association's Board of Directors in its discretion may designate therefor.

Section 12. No basements, garages, sheds, shacks, outbuildings or impermanent structures such as tents shall be used as dwellings on any Platted Residential Lot.

Section 13. No fuel tanks shall be maintained above ground on any Platted Residential Lot without written permission of the Board of Directors or architectural control committee, which may grant such permission subject to adequate screening and other appropriate requirements.

Section 14. No vehicle shall be parked on the Common Area except those portions of it which have been specifically set aside and designated as parking lots by the Association. No vehicle shall ever be abandoned or dismantled and no major vehicle repair work shall ever be performed on any part of the Common Area. No vehicle in an extreme state of disrepair shall ever be parked or permitted to remain on any part of the Common Area for more than 48 hours. A vehicle shall be deemed in an extreme state of disrepair when it is incapable of moving under its own power or when, in the opinion of the Directors of the

Association or the Architectural Control Committee, its presence offends the reasonable sensibilities of the occupants of Hartstene Pointe.

If any lot Owner violates the foregoing regulations or permits a violation thereof by members of his family, his invitees or his licensees, and fails to cure such violation within 48 hours of having been notified thereof by the Association or the Architectural Control Committee, the Association may correct the offending condition and add the cost of such correction to the assessments to which such Owner's lot is subject.

Section 15. No Platted Residential Lot shall ever be used in a fashion which unreasonably interferes with the other lot Owners' or the Association's right to the use and enjoyment of their respective properties, or the other lot Owners' right to the use and enjoyment of the Common Area. The Board of Directors of the Association or the Architectural Control Committee designated by it shall determine whether any given use of a Platted Residential Lot unreasonably interferes with those rights, and such determination shall be conclusive.

Section 16. The space, if any, under any building on any Platted Residential Lot may be used for the storage of articles other than boats and boat trailers subject to such uniform rules and screening requirements as the Association may prescribe.

ARTICLE VIII

BUILDING RESTRICTIONS

Section 1. No alteration of the exterior design, the exterior finish or the interior layout of any dwelling on any Platted Residential Lot may be made without first obtaining

(a) a building permit from the proper local governmental authorities, and

(b) an alteration permit from the Board of Directors of the Association or the Architectural Control Committee designated by it pursuant to Article VI of these Covenants.

Section 2. Any alterations or remodeling done pursuant to Section 1 of this Article

(a) shall conform to the specifications and requirements of the most recent revisions of the State of Washington Electrical Code and the Uniform Building Code in force at the commencement of the alteration or remodeling work, and

(b) may only be performed by the Association or contractors hired by the Association. The Association's compensation for alteration or remodeling work done hereunder shall not be deemed included in any regular or special assessment but shall be fixed by contract between the Association and the Owner desiring the work.

Section 3. It shall be the Association's exclusive right and duty to provide adequate exterior building maintenance on all Platted Residential Lots as follows: Stain or paint, repair, replace and care for roofs, gutters, downspouts, exterior building

surfaces and other exterior improvements. Such exterior maintenance shall not include glass surfaces.

In the event that the need for maintenance or repair work is caused through the willful or negligent act of the Owner, his family or guests, or invitees, the cost of such maintenance or repairs shall be added to and become a part of the assessments to which such lot is subject.

The Association may at all reasonable times enter upon any Platted Residential Lot for the purpose of performing its functions hereunder.

Section 4. Garages, carports or other structural additions to buildings on Platted Residential Lots are prohibited unless uniformly designed and constructed by or under the direction of the Association, and approved by the Architectural Control Committee.

Section 5. No fence or wall shall be erected, located or maintained upon any Platted Residential Lot.

Section 6. Entranceways to Platted Residential Lots shall remain as originally laid out and constructed. Other or additional entranceways or trails may only be laid out, constructed or maintained with the written permission of the Board of Directors or its Architectural Control Committee.

Section 7. No building, structure or landscaping of any kind, erected or maintained or suffered to be erected or maintained by the Owner of a Platted Residential Lot may trespass or encroach upon the Common Area. The Association shall have authority to

abate any such trespass or encroachment upon the Common Area at any time, by any reasonable means and without having to bring legal proceedings.

Section 8. Exterior lighting of any sort which is visible from any street, any part of the Common Area or any other Platted Residential Lot in Hartstene Pointe may be installed only with the written permission of the Board of Directors or its Architectural Control Committee.

Section 9. All buildings and landscaped grounds on any Platted Residential Lot shall be kept in a safe and reasonable state of repair, cleanliness and neatness. Undesirable weeds having a tendency to spread across property lines shall be kept under control.

ARTICLE IX

PARTY WALLS

Section 1. Foundation piers, floors, beams, roofs and other structural members or elements common to two adjoining homes on adjacent Platted Residential Lots which are built as part of the original construction, are placed upon or straddle the dividing line between two adjacent Platted Residential Lots and actually support or protect two adjacent homes shall be regarded and treated as party walls, and to the extent not inconsistent with the provisions of this Article, the general rules of law regarding party walls and liability for property damage due to negligence or willful acts or omissions shall apply thereto.

Section 2. The cost of reasonable repair and maintenance of a party wall (as above defined) shall to the extent that it is not borne by the Association pursuant to Section 3 of Article VIII hereof, be shared by the Owners who make use of the wall in proportion to such use. In the case of adjoining homes, each Owner's proportion of such use for the purposes of this Article shall be deemed to be 50%.

Section 3. If a party wall (as above defined) is destroyed or damaged by fire or other casualty, any Owner who has used the wall may restore it, and if the other Owner thereafter makes use of the wall, he shall contribute to the cost of restoration thereof in proportion to such use without prejudice, however, to the right of either of such Owners to call for a larger contribution from the other under any rule of law regarding liability for negligent or willful acts or omissions.

Section 4. Notwithstanding any other provision of this Article, an Owner who by his negligent or willful act causes the party wall to be exposed to the elements shall bear the whole cost of furnishing the necessary protection against such elements.

Section 5. The right of any Owner to contribution from any other Owner under this Article shall be appurtenant to the land and shall pass to such Owner's successors in title.

Section 6. In the event of any dispute arising concerning a party wall, or under the provisions of this Article, each party shall choose one arbitrator, and such arbitrator shall choose one

additional arbitrator and the decision shall be by a majority of all the arbitrators. Such decision shall be final.

Section 7. Appurtenant to each Platted Residential Lot there shall be an easement over all adjoining Platted Residential Lots and the Common Area for the purpose of accommodating any encroachment by buildings or structures on the Platted Residential Lot due to engineering errors, errors in original construction, or the settling or shifting of such buildings or structures. If any residence on any Platted Residential Lot is partially or totally destroyed and then repaired and rebuilt substantially in accordance with the original plans and specifications, there shall also be appurtenant to the Platted Residential Lot similar easements to accommodate minor encroachments by the successor structure which result from similar causes.

ARTICLE X

INTERPRETATION, ADMINISTRATION AND ENFORCEMENT OF THESE COVENANTS

Section 1. If the Board of Directors chooses to appoint an Architectural Control Committee as hereinbefore provided, such Committee shall have primary and exclusive jurisdiction to interpret, administer and enforce these covenants and find all facts relative to any claimed or suspected violation. The Association may collect a reasonable application fee from applicants for permits required under Article VI or Section 1(b) of Article VIII hereof.

Any Owner adversely affected by Committee action may appeal to the Board of Directors. Appeals shall be made in writing within ten days of the Committee's action, and shall set forth the part of the Committee's action deemed objectionable. The appeal shall be considered by the Board at its next scheduled meeting, and a final and conclusive determination shall be made by the Board within 15 days after such meeting.

The Committee shall be responsible for seeing to it that lot Owners who may be adversely affected by a Committee decision are given reasonable notice thereof.

Section 2. The Association, acting through its Architectural Control Committee, if any, and its Board of Directors shall be primarily responsible for enforcing these covenants and for preventing and abating violations thereof. In performing this function it may avail itself of such injunctive and other legal remedies as may be available to it under Washington law. The Association may charge the costs of preventing or abating a violation of these covenants to the offending Owner and add the amount thereof to his next regular annual or special assessment. Such costs may include a reasonable attorney's fee.

Section 3. Any Owner may complain of an actual or threatened violation of these covenants to the Architectural Control Committee if there is one, or to the Board of Directors, if there is none, and demand that the Association prevent or abate the same. No Owner may sue to prevent or abate an actual or threatened viola-

tion of these covenants without having done so and without having exhausted the remedies available to him within the Association. However, no building the construction of which has been commenced, and no landscaping, remodeling or alteration work which has been completed shall be deemed in violation of these covenants if the same was authorized by permits issued pursuant to Article VI or Section 1 of Article VIII of these covenants.

ARTICLE XI

AMENDMENT

The covenants and restrictions of this Declaration shall run with and bind the land for a term of 20 years from the date this Declaration is recorded, after which time they shall be automatically extended by successive periods of ten years. This Declaration may be amended during the first 20-year period by an instrument signed by not less than 90% of the lot Owners, and thereafter by an instrument signed by not less than 75% of the lot Owners. Any amendment must be recorded.

ARTICLE XII

ANNEXATION

Declarant shall have the option to add to Hartstene Pointe further residential and commercial property and common area located in Sections 19 and 30 of Township 21 North, Range 1 West, of Willamette Meridian and Sections 24 and 25, Township 21 North, Range 2 West of Willamette Meridian, by recording plats identifying the same as further additions to Hartstene Pointe.

ARTICLE XIII

SEVERABILITY

Invalidation of any one of these covenants or restrictions by judgment or court order shall in no way affect or invalidate any other provision, which shall remain in full force and effect.

IN WITNESS WHEREOF, the undersigned, being the Declarant herein, has hereunto set its hand and corporate seal this 22nd day of September, 1970.

WEYERHAEUSER PROPERTIES, INC.
DECLARANT

By *Dick Willard*
Dick Willard,
President

STATE OF WASHINGTON)
COUNTY OF KING) ss.

On this 22nd day of September, 1970, before me personally appeared Dick Willard, to me known to be the President of the corporation that executed the within and foregoing instrument and acknowledged said instrument to be the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument and that the seal affixed is the corporate seal of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

Margaret B. Threlton
Notary Public in and for the
State of Washington residing
at Bellevue